



File No: EXP202407813

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On October 16, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against INSTITUTO RAIMON GAJA, S.L. (hereinafter, IRG). The initiation agreement was notified, and after analyzing the allegations presented, on December 11, 2024, the proposed resolution was issued, which is transcribed below:

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Procedure No: EXP202407813 (PS/00436/2024)

PROPOSED RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On 06/05/24, Ms. A.A.A. (the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity, INSTITUTO RAIMON GAJA, S.L. with NIF: B56488687 (the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The complainant states in her complaint:

"After a leak of my personal data (the complaint was filed in September 2022 at ***ADDRESS.1), I started receiving advertisements from numerous sites. I had previously requested this institute, which also teaches psychological topics, to delete my personal data, as I do not even know where they obtained it; they stopped sending spam, so I ended up deleting last year's emails.

Not long ago, they started sending advertisements again, so I requested the deletion of my data once more, and their response was to send me the same email with advertisements three times (April 20), to which I replied that if they wrote to me again, I would report the breach of the LOPD (they advertise psychology courses; I consider it necessary to emphasize this due to the crucial nature of the topic of "data privacy" in this area); today they have sent me advertisements again.

In the section "date on which the right was exercised before the data controller," I put March of this year, but I would like to emphasize that they started last year. I do not know the exact date they started; it was after the aforementioned data leak; I really thought they had deleted it when I requested it, so I preferred to forget about the issue and delete everything. I did not expect that months later they would do it again, and even less that they would respond by resending me the same email three times (it was spam, they did not even respond) after the request for deletion of my data. I request, please, that this center and any associated entities delete my personal data from their database. Thank you very much in advance."

Along with the complaint, the following documentation is attached:

a).- Copy of the chain of emails exchanged between the email address, "Dirección General.-

***EMAIL.1" and the complainant's email address, ***EMAIL.2, with the Title "Optimize your practice effortlessly with Psicobox" where the chain of received emails and the response given by the recipient can be verified, as well as the date on which they occurred:

- Dated 20/04/24, (times: 16:31; 16:31 and 16:33) copy of three emails sent from the address, ***EMAIL.1, to the email address ***EMAIL.2 signed by "Institutoraimongaja.com", with the Subject: "Optimize your practice effortlessly with Psicobox" and containing the following message:

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"Hello! We know you want to learn more about Psicobox: for Psychologists, well, today, we want to delve into how this free resource can transform your day-to-day. Download it for FREE now! ...".

- Dated 21/04/24, copy of the email sent from the email address ***EMAIL.2 to the email address, ***EMAIL.1" with the following message:

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"I am still keeping the emails they send - despite my refusal to let them use my personal data, I have not given my consent - to file the complaint, I have expressly requested that they delete my data from their database on numerous occasions... delete my data or I will report this breach. I might not even wait a month, as they have been sending this garbage against my will for MONTHS."

b).- Dated 06/05/24, copy of the email sent from the email address, "IRG Instituto Raimon Gala", ***EMAIL.3, to the email address, ***EMAIL.2 and signed by: "Institutoraimongaja.com", with the Subject: "Sign up! IMC: Importance of exercise for your emotional well-being" and containing the following message:

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"IRG "Instituto Raimon Gaja:

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SECOND: On 28/05/24, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent for analysis and to report back within one month on the matters raised in the complaint.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), via electronic notification, with the following result: "expired due to lapse, as the established deadline for appearance was exceeded, as of 08/06/24 00:00," as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, in accordance with the provisions of Article 41.5 of the LPACAP, the complaint was resent to the respondent via postal notification on 18/06/24, with the result "Delivered at Destination" on 26/06/24. There is no record that this Agency has received any response to this forwarding.

THIRD: On 06/08/24, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On 16/10/24, the Director of the Spanish Agency for the Protection of Data agreed to initiate sanctioning proceedings against the respondent in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violation of Article 21.1 of the LSSI, classified as minor in Article 38.4.d) of the aforementioned regulation, for sending unsolicited or expressly unauthorized commercial communications.

In the opening agreement, it was determined that the sanction that could correspond, considering the existing evidence at that time and without prejudice to what resulted from the instruction, would amount to a total of 2,000 (two thousand euros).

FIFTH: On 28/11/24, this Agency received a written statement of allegations regarding the initiation of the file, which states the following:

"1. Competence of the AEPD

The Spanish Agency for the Protection of Data has the competence to instruct and resolve sanctioning procedures in matters of personal data protection, in accordance with Article 47 of the LOPDGDD and Article 57 of the GDPR. However, this party argues that the actions of the AEPD must scrupulously observe the principles of objectivity, proportionality, and presumption of innocence enshrined in Articles 9.3 and 24.2 of the Spanish Constitution.

II. Non-existence of infringement

The complainant alleges that they requested the deletion of their personal data in 2022. However, it should be noted that the company Instituto Raimon Gaja, S.L. was established on October 4, 2023, in accordance with Protocol 3.632 of Notary C.C.C., and registered in the Commercial Registry of Barcelona under number 43127191. Therefore, it is materially impossible for the complainant to have requested the deletion of data from a non-existent entity at that time.

III: Request for information about our training programs

The request for information was captured and recorded in the system of an organization through a sales or marketing funnel. This implies that the person showed interest in a specific product or service (in this case, the Master's in Clinical Psychology and Health) and requested information about it.

IV. Regarding the sending of advertising and request for cancellation

Regarding the sending of advertising communications, this party states that the complainant did not submit a formal cancellation request through the mechanisms established by this entity. Each email sent includes a link at the bottom of the message that allows the recipient to unsubscribe immediately from future communications. There is no record in our system that the complainant has exercised this option or sent a formal request in accordance with the procedure described in Article 21 of the GDPR.

V. Measures taken to avoid future complaints

In order to prevent complaints of this nature and ensure respect for the rights of the interested parties, the complainant was removed from our database. Consequently, they will no longer receive communications from our entity.

VI. Lack of sufficient evidence

In accordance with the principle of presumption of innocence enshrined in Article 24 of the Spanish Constitution and Article 23.2 of the LPACAP, it is up to the AEPD to provide sufficient evidence that unequivocally proves the commission of the alleged infringement. In this case, the facts described in the Opening Agreement have not been sufficiently proven due to their lack of relevance and inconsistency.

VII. Principle of proportionality

In the event that the existence of an infringement is considered, this party requests that the principle of proportionality enshrined in the...

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Article 83.1 of the GDPR, considering the nature and severity of the infringement, the absence of intent on the part of this entity/person, and the measures implemented to minimize potential damage.

EVIDENCE: The admission of the following evidence is requested: 1. Certification of the incorporation of the company Instituto Raimon Gaja, S.L., which certifies that the company did not exist in the year 2022. 2. Internal record demonstrating the absence of a formal request for cancellation by the complainant. 3. Screenshots of the emails sent, including the link to unsubscribe, as proof of compliance with Article 21 of the GDPR. 4. Notarial power of attorney.

REQUEST: For all the above, it is requested that the Spanish Agency for Data Protection: 1.

Acknowledge the submission of these allegations and evidence in due time and form. 2. Archive the sanctioning procedure, as no infringement has been committed by this entity. 3. Alternatively, in case of considering the existence of an infringement, apply the minimum possible sanction, in accordance with the principle of proportionality enshrined in Article 83.1 of the GDPR.

From the actions taken in this procedure and the documentation in the file, the following PROVEN FACTS have been established:

First: The entity responsible for the investigated facts is Instituto Raimon Gaja, S.L., with NIF: B56488687, identified as responsible for sending the commercial communications subject to this complaint.

Second: From the documentation submitted along with the complaint, it is confirmed that, on 20/04/24, from the email address "Dirección General ***EMAIL.1", three emails were sent to the complainant's email address, ***EMAIL.2, with the subject: "Optimize your office effortlessly with PsícoBox" and

signed by "Institutoraimongaja.com". The body of the emails included the following content:
"Hello! We know you want to learn more about Psicobox: for Psychologists, well, today, we want to delve into how this free resource can transform your day-to-day. Download it for FREE now! ..."
At the bottom of each of these emails, the legend was included: "If you wish to cancel your subscription, please <>."

Third: It is confirmed that, on 21/04/24, the complainant responded to the email address ***EMAIL.1, expressly stating her opposition to receiving more advertising emails and requesting their removal from the database. The content of the message is as follows:

"I continue to keep the emails you send - despite my refusal to allow you to use my personal data, I have not given my consent - to file the complaint.

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I have already expressly requested that you delete my data from your database on numerous occasions... delete my data or I will report this non-compliance."

Fourth: It is confirmed that, on 06/05/24, from the email address ***EMAIL.3, a new email was sent to the complainant's address, ***EMAIL.2, with the subject "Sign up! IMC: Importance of exercise for your emotional well-being" and signed by "institutoraimongaja.com". The body of the email included the following content:

"IRG Instituto Raimon Gaja: Physical Activity and the impact on your emotions. B.B.B.. LICENSED IN PHYSICAL CULTURE AND SPORTS WITH A MASTER'S IN HIGH MANAGEMENT. Sign up for our International Masterclass: Physical activity and the impact on your emotions. Learn how emotional well-being requires a healthy lifestyle ..."

This email also contained, at its footer, the legend: "If you wish to cancel your subscription, please <>."
LEGAL GROUNDS

I

Competence.

According to the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Response to the allegations presented:

Before proceeding to examine the allegations presented by the defendant regarding the initiation of the file, let us recall that the complaint is essentially based on the fact that the complainant had received commercial communications from the defendant via email without express consent due to an unauthorized leak of her data and that after previously requesting the deletion of her personal data from their systems, this company has recently sent her advertising via email (up to three times in one day), on 20/04/24. After requesting

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again that they should not send her commercial communications and the deletion of her data on 04/21/24, she received advertising from this company again on 05/06/24. Along with the complaint document, the claimant has provided documentation that substantiates her claim and evidences the persistence in sending unsolicited commercial communication and the omission of the request not to send her any more commercial communications and the removal from their systems.

First: In the section "II. Non-existence of infringement" of the statement of allegations, the respondent claims that it could not have received a request for the deletion of personal data from the claimant in 2022 due to its legal non-existence at that time.

Well, from the literal wording of the document submitted by the claimant, it does not emerge at any moment that she has alleged having received commercial communications specifically from Instituto Raimon Gaja, S.L. in the year 2022. The claimant only mentions that after a supposed leak of her personal data in September 2022, she began to receive advertising from numerous sites, without specifying at this point that such communications came from the respondent company, nor that the request for deletion of data in that year was directed to said entity.

The claimant specifies that she received commercial communications again and exercised her right to erasure again in March 2024, additionally indicating that it was in this context when she received a response from the entity that consisted of the repeated sending of emails with advertising content on 04/20/24. These facts are indeed temporally attributable to the respondent entity, as it was already established, as evidenced by its own documentation on 10/04/23.

The fact that the claimant mentions a prior context in 2022 does not directly link the respondent entity to the events that occurred in that year. The mention of previous commercial communications merely establishes the narrative framework of the complaint, but in no case does it configure any attribution of illegal activity attributable to Instituto Raimon Gaja, S.L. during that period, nor is any responsibility requested for events that occurred before its establishment.

The respondent does not expressly deny the carrying out of the commercial communications alleged by the claimant in 2024, limiting itself to arguing the impossibility of having received requests for deletion in 2022. This defense strategy does not affect the existence or legitimacy of the claim, which is based on facts subsequent to the establishment of the company and to which compliance with the regulations is indeed required.

In light of the above, it is concluded that the allegations of the respondent lack support, as they do not impact the facts that motivate the claim. The claimant does not attribute commercial communications in 2022 to the respondent entity, limiting herself to contextualizing her claim. Therefore, the facts subject to analysis must focus on the events of 2024, a period in which the company was already established and subject to compliance with the regulations, so the respondent's assertion regarding its legal non-existence in 2022 does not apply.

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distorts the evidence provided by the claimant that proves the sending of unsolicited commercial communications in May 2024, after having requested that no further commercial communications be sent to her and that her personal data be deleted from the systems of the respondent.

Second: In the section "III.- Request for information about our training programs," the respondent states that "The request for information was captured and recorded in the system of an organization through a sales or marketing funnel, and this demonstrates that she showed interest and requested information in this regard."

Well, we must indicate that, regarding the authorization or consent that the user grants to the data controller for the sending of commercial communications, Directive 5/2020 on consent in the sense of Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, concerning the Protection of Natural Persons with regard to the Processing of Personal Data and on the Free Movement of such Data (GDPR), establishes, in points 105 to 108, the following:

105. Recital 42 states that: "When the processing is carried out with the consent of the data subject, the data controller must be able to demonstrate that the data subject has given consent to the processing operation."

106. Data controllers have the freedom to develop methods that allow them to comply with this provision adapted to their daily operations. At the same time, the obligation to demonstrate that a data controller has obtained valid consent should not in itself lead to excessive additional data processing. This means that controllers should have sufficient data to show a link to the processing (to show that consent was obtained), but should not collect more information than necessary.

107. It is the responsibility of the controller to demonstrate that valid consent was obtained from the data subject. The GDPR does not prescribe exactly how this should be done. However, the controller must be able to demonstrate that, in a specific case, a data subject has given consent. The obligation to demonstrate consent will exist as long as the data processing activity in question lasts. Once this activity has ended, proof of consent should not be retained beyond what is strictly necessary to comply with a legal obligation or for the formulation, exercise, or defense of claims, in accordance with Article 17, paragraph 3, letters b) and e).

108. For example, the controller must maintain a record of the consent statements received, so that it can demonstrate how consent was obtained and when such consent was obtained, and it must also demonstrate the information that was provided to the data subject at that time. The controller must also be able to demonstrate that the data subject was informed.

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interested party and that the workflow of the data controller met all relevant criteria for valid consent. The underlying logic of the above is that the data controller of commercial communications must be accountable for obtaining the authorization of the interested party for sending commercial communications and for the mechanisms used to achieve this. For example, in an online context, as is the case here, the data controller should retain information about the session in which the user authorizes the sending of commercial communications, along with documentation about the workflow carried out when that session took place, and a copy of the information that was presented at that time to the interested party for their acceptance. It would not be sufficient to refer solely to a configuration or webpage-form of the site.

The regulation does not establish a specific mechanism on how the data controller must be able to prove that the user has requested or expressly authorized the commercial communications, having the freedom to implement the form and record that best fits the processes of the organization, but at a minimum, it must be able to verify who, when, and how the commercial communications were authorized, as well as the information that was provided to the user at the time of obtaining it. This obligation persists as long as the processing of personal data continues under the initial conditions in which the data was collected and must be verifiable in the event of an audit or inspection. Therefore, to assess whether the commercial communications were made having been previously requested or expressly authorized, the data controller of the communications must maintain a log of the actions taken to be able to prove it.

In the present case, the defendant presents a copy of the certificate of incorporation of the company Instituto Raimon Gaja, S.L., an internal record of the claimant's profile, and a screenshot of an email including the link to unsubscribe.

Well, beyond indicating that the claimant has "...registered in the system of an organization through a sales or marketing funnel..." and that "...this implies that the person showed interest in a specific product or service (in this case, the Master's in Clinical and Health Psychology) and requested information about it...", from the documentation provided, it does not emerge in any case that the claimant granted express consent to receive commercial communications, as no model of a form is provided, nor the manner in which such consent was obtained, nor the date and time of obtaining it. There is also no record of any request for information in a hypothetical form, as the defendant seems

rather to argue that information was requested, not so much that the hypothetical consent to receive advertising was obtained. That is, the log of the alleged registration with consent is not provided. It also does not prove that a mechanism was established on the website that ensures that inaccurate email addresses are not entered, which could have been entered by mistake or fraud.

Third: In point “IV. On the sending of advertising and request for unsubscription” of its written allegations, the defendant states that, at no time did the claimant use the established mechanisms to unsubscribe from advertising communications,

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as the link provided in each email or a formal request in accordance with Article 21 of the GDPR, as recorded in the entity's system; however, from the established facts, it is evident that the complainant, on 21/04/24, sent an email to the same address from which the advertising communications were sent, expressing her clear will not to receive any more promotional messages.

In this regard, Article 21.2 of the LSSI states that the procedure for exercising the right of opposition must be simple and free of charge, and does not limit the exercise of this right to a single mechanism, such as the unsubscribe link included in the emails. In this case, the email sent by the complainant constitutes a valid exercise of her right to oppose receiving commercial electronic communications: “... the provider must offer the recipient the possibility of opposing the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications directed to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised...”

Therefore, there is no doubt that the complainant fulfilled the requirements established in the LSSI to express her opposition to the sending of advertising communications by sending her request to the email address from which the commercial communications were being sent to her on 21/04/24, and despite this, the entity being complained about persisted in sending advertising communications by sending a new advertising email on 06/05/24, which constitutes a clear infringement of the provision established in Article 21 of the LSSI.

However, the core of the issue in this case does not lie so much in the fact that after requesting not to receive any more advertising emails, the entity being complained about ignored her request, but rather that the entity being complained about has not demonstrated, at any time, that the complainant expressed prior and explicit consent to receive such commercial communications, as established in Guideline 5/2020, previously mentioned.

Fourth: Regarding the allegations presented by the entity being complained about in point “VI. Lack of sufficient evidence,” in which it invokes the principle of presumption of innocence enshrined in Article 24 of the Spanish Constitution and Article 23.2 of Law 39/2015, on the Common Administrative Procedure of Public Administrations (LPACAP), it should be noted that, although the principle of presumption of innocence, recognized in Article 24.2 CE and extended to the field of sanctioning administrative procedure, requires that any sanction be based on sufficient and legitimately obtained evidence, it does not exempt the data controller from fulfilling the obligations established in Guideline 5/2020, as previously outlined, since, according to it, it is the responsibility of the entity, in this case, of sending commercial communications, to demonstrate that it...

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complied with the requirements to obtain valid consent from the interested party for the sending of such commercial communications, and that the necessary mechanisms were adopted to ensure that

such consent was truly granted by the interested party and not by a third party. Therefore, in this case, the principle of presumption of innocence cannot be invoked to exempt the responsible party from this obligation. Let us remember that, as established in point 105 of Guideline 5/2020, it is required that the data controller maintains verifiable records that prove who granted the consent, how and when it was granted, and the absence of such records constitutes a clear breach of the obligations imposed by the regulations, in this case, the LSSI. The respondent has not demonstrated the existence of logs or records that document the moment, the manner, and the conditions under which consent was obtained for the sending of commercial communications, and the documents provided, by not including verifiable evidence, lack sufficient probative value to prove the legitimacy of the processing of the claimant's personal data for the sending of commercial communications.

Fifth: Regarding the allegations made by the respondent in point "VII. Principle of Proportionality," in which it requests the application of the principle of proportionality established in Article 83.1 of the GDPR, it is appropriate to note that this article (Article 83.1 of the GDPR) establishes the principle of proportionality concerning the sanctions imposed under said Regulation. However, in the present procedure, the infringement in question specifically refers to Article 21.1 of the LSSI, which regulates the sending of electronic commercial communications without the consent of the recipient or ignoring their express opposition. Therefore, Article 83.1 of the GDPR is not applicable in our case for the calibration of the sanction, as this case is entirely regulated by the sectoral regulations of the LSSI. The amount of the sanction has been calibrated according to the specific criteria established in Article 40 of the LSSI, which govern this type of infringement. This article provides that sanctions will be calibrated taking into account, among other factors, the existence of intent (paragraph a), and this intent has been demonstrated in the present case, as the respondent continued to send commercial communications despite having received an email from the claimant on 21/04/24, expressly requesting not to receive any more advertising messages.

This behavior demonstrates a conscious breach of the legal obligations provided in Article 21.1 of the LSSI, which constitutes an aggravating factor in the calibration of the sanction, and the amount of 2,000 euros proposed in this case not only aligns with the calibration criteria established in Article 40 of the LSSI but also adheres to the principles of proportionality, necessity, and adequacy provided in the legal framework. This is so because the infringement committed is classified as minor in Article 38.4.d) of the LSSI, which states that this type of infringement may be sanctioned with a fine of up to 30,000 euros, placing the proposed sanction of 2,000 euros in the lower range of the established sanctioning bracket, reflecting an appropriate calibration to the concurrent circumstances and a clear moderation in its amount.

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Therefore, the proposed amount complies with the principles of proportionality, adequacy, and necessity established in the legal framework and must be confirmed in the resolution of the sanctioning procedure.

III

Classification of the possible infringement committed by sending commercial communications without prior request or express authorization.

Based on the above, the act of sending commercial communications without prior request or express authorization constitutes a violation by the respondent of what is established in Article 21 of the LSSI, which states the following:

“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar

to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.”

IV

Proposal and Graduation of Sanction

The aforementioned infringement is classified as “minor” in Article 38.4.d) of said regulation, which qualifies as such,

“The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and do not constitute a serious infringement.”

According to what is established in Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

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On the other hand, Article 40 of the LSSI establishes the criteria for the graduation of the amount of the sanctions:

“The amount of the fines imposed shall be graduated taking into account the following criteria: a) The existence of intent. b) The period during which the infringement has been committed. c) The recurrence of committing infringements of the same nature, when declared by a firm resolution. d) The nature and amount of the damages caused. e) The benefits obtained from the infringement. f) The volume of billing affected by the committed infringement. g) Adherence to a code of conduct or an applicable self-regulation advertising system regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent body or bodies.

Based on the evidence obtained, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following circumstances, as established by Article 40 of the LSSI mentioned:

- The existence of intent.- (section a), as the respondent, despite receiving the email with the request not to send more commercial communications, continues to send commercial communications to the complainant.

According to these criteria, it is deemed appropriate to impose a sanction of €2,000 (two thousand euros) for the infringement of Article 21.1 of the LSSI.

In light of the above, the following is issued,

PROPOSAL FOR RESOLUTION

FIRST: That the Director of the Spanish Agency for Data Protection sanctions the entity, INSTITUTO RAIMON GAJA, S.L. with NIF: B56488687 for the infringement of Article 21 of the LSSI, classified as minor in Article 38.4.d) of the same regulation with a sanction of €2,000 (two thousand euros).

SECOND: Likewise, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount.

With the application of this reduction, the sanction would be established at €1,600 (one thousand six hundred euros) and its payment will imply the termination of the procedure. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of the amount specified above, in

accordance with the provisions of the aforementioned Article 85.2, it must be made effective by depositing it into the restricted account No. ES00 0000 0000 0000 0000

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0000 open in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. Furthermore, the proof of payment must be sent to the General Sub-Directorate of Inspection to proceed with closing the file.

In virtue of this, you are notified of the above, and the procedure is made known to you so that within TEN DAYS you may allege whatever you deem appropriate in your defense and present the documents and information you consider pertinent, in accordance with Article 89.2 of the LPACAP. José Pablo Lozoya Martín.

THE INSTRUCTOR OF THE PROCEDURE.

(...)

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SECOND: On December 31, 2024, IRG proceeded to pay the sanction in the amount of 1,600.00 euros, making use of the reduction provided for in the resolution proposal transcribed above.

LEGAL GROUNDS

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Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness will be conditioned upon the withdrawal or renunciation of any action

or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

III

Voluntary payment

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified resolution proposal allowed for the voluntary payment of the proposed sanction, which would entail a 20% reduction of its amount. With the application of this reduction, the sanction would be established at 1,600.00 euros and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the aforementioned resolution proposal, and before a resolution was issued by this authority, IRG, on December 31, 2024, proceeded to make the voluntary payment, availing itself of the 20% reduction. In accordance with section 3 of Article 85 LPACAP, the effectiveness of the aforementioned reduction will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to

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to resolve and notify all proceedings, regardless of their form of initiation. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any other matters arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the resolution proposal transcribed in this resolution.

The sum of the aforementioned amounts results in a total of 2,000.00 euros.

After INSTITUTO RAIMON GAJA, S.L. voluntarily proceeded to pay, although without acknowledgment of responsibility, it is hereby resolved, pursuant to Article 85 of the LPACAP, to reduce the total mentioned by 20%, which results in the final amount of 1,600.00 euros.

The effectiveness of the aforementioned reduction is conditioned, in any case, on the withdrawal or renunciation of any action or appeal in the administrative route.

SECOND: TO DECLARE the termination of procedure EXP202407813, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO NOTIFY this resolution to INSTITUTO RAIMON GAJA, S.L.

FOURTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment on the withdrawal or renunciation of any action or appeal in the administrative route, this resolution will be final in the administrative route and fully executable from the moment of its notification.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the

administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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